



SNAP Continued Responsibilities

Policy 24.25

Effective: February 15, 2023

Introduction

Tennessee Department of Human Services (TDHS) shall meet federal and state guidelines regarding the requirements for continuing participation for SNAP households after eligibility has been approved.

Scope

The purpose of this policy is to provide staff an understanding of the required actions by the state agency and participating SNAP households in order to provide a continuation of SNAP benefits.

Policy

Establishing Certification Periods

1. The period of eligibility for a SNAP household is its certification period. When staff complete the application process and determine the household is eligible, the longest certification period shall be given based on the predictability of the household's circumstances. Staff shall also refer to [Policy 24.02 SNAP Application Processing](#).
 - a. All households must be given an appropriate certification based on the household circumstances.
 - b. Case notes should indicate the reason why the certification period was given to the household.
 - c. A partial month of benefits is considered one of the months in the certification period even if that month prorates to zero (0), if otherwise eligible.
2. At the expiration of each certification period, entitlement to SNAP benefits will end and benefits shall not be continued without a new application and a determination of eligibility, even if the household has requested a fair hearing of an adverse action.

3. When a household submits multiple applications, staff shall refer to [Multiple Application Processing for SNAP](#).

Staff Responsibilities

1. At each certification, recertification, and reported change, the worker shall inform the household of their reporting requirements, see the section below for Household's Responsibilities.
 - a. Change reporting (or Non-Simplified Reporting) households must report certain changes within ten (10) days of the date they become known.
 - The ten (10) day count will begin with the date the change becomes known to the household.
 - b. Simplified Reporting households must report certain changes within the first ten (10) days of the month following the month the change occurred.
 - The ten (10) day count for simplified reporting changes is the first (1st) day of the month following the required change.
 - c. All households must report if any member of the household receives substantial lottery or gambling winnings within ten (10) days of receipt.
 - The ten (10) day count will begin with the date the winnings are received by the household.
2. When any change is reported by the household or is discovered staff shall refer to the [Reporting Requirements and Act on All Changes](#) documents.
3. SNAP benefits may not be increased based on a decrease in income from a Federal, State, or local welfare program resulting from the household's intentional failure to comply with the other program's requirements. Staff shall refer to [Penalty for SNAP due to Failure to Comply](#).
4. The United States Department of Agriculture and Food and Nutrition Services (USDA FNS) requires that states establish issuance and accountability systems which ensure that only certified eligible households receive benefits; that Program benefits are timely distributed in the correct amounts; and that benefit issuance and reconciliation activities are properly conducted and accurately reported to FNS.
5. Assigned staff shall complete the Potential SNAP Duplicate Issuance report and refer to [Potential Duplicate SNAP Benefits Report](#) supporting document for instructions on how to complete the report.

Household's Responsibilities

1. Simplified Reporting households are households certified between four (4) to six (6) months whose sole income source is not from self-employment OR households that are eligible and certified for a twenty-four (24) months certification. See 24-Month Certification for eligibility criteria.
 - a. Simplified reporting cases are only required to report the following changes prior to their recertification:

- i. if their income goes over the gross income limit for the household size at last certification
 - ii. if an ABAWD member's hours go below an average of twenty (20) hours per week or an average of eighty (80) hours per month; or
 - iii. if any member of the household receives substantial lottery or gambling winnings
 - b. Simplified reporting cases certified for twenty-four (24) months are required to complete a Mid Certification form to continue participation. Staff shall refer to [24-Month Certification](#).
 - c. If a change occurs during a household's certification period that causes them to no longer be a simplified reporting household, the reporting requirement will remain for the remainder of the certification period.
2. Change reporting households are households that are certified up to six (6) months where the only earned income is annualized income from self-employment or households certified for three (3) months or less.
- a. Change reporting households are required to report the following changes within ten (10) days of the date the change becomes known to the household;
 - i. Changes in the source or amount of gross monthly unearned income of more than \$125, except changes in Families First
 - ii. Changes in earned income when there is a change in the source, hourly rate or salary, or employment status
 - iii. Changes in resource (amount of assets) that exceed the allowable limit
 - iv. Acquiring a licensed vehicle that is not fully excludable
 - v. Changes in household composition
 - vi. Changes in residence
 - vii. Changes in legally obligated child support being paid
 - viii. When an employed ABAWD household member's work hours fall below an average of twenty (20) hours per week or an average of eighty (80) hours per month
 - ix. If any member of the household receives substantial lottery or gambling winnings
 - b. If a change occurs during a household's certification period that changes the non-simplified reporting criteria, the household will be changed to simplified reporting requirements.
 - i. The case shall be documented that the household is now simplified reporting within two (2) business days.

- ii. It shall be explained to the household their new reporting requirements and a [Change Report Form hs-2302](#) shall be provided.

Changes During the SNAP Certification

1. When changes that affect a household's eligibility or level of benefits occur within the certification period, action may need to be taken to adjust the benefits.
2. Although only certain changes are required to be reported, Tennessee is an Act on All Changes state and in an effort to ensure accurate eligibility and issuance of SNAP benefits, eligibility workers will act on all changes that become known to the department, both "recipient reported" and "non-recipient reported" within ten (10) days.
 - a. The change will be processed regardless of whether it is a positive or negative action.
 - b. The eligibility worker will only question information related to the change that has become known to the department. (Staff can refer to guide [What Should You Ask?](#))
 - c. All actions and notices sent to the household will require documentation in case records within two (2) business days.
3. When returned mail is received, the county office shall enter the information in the case notes within two (2) business days.
 - Staff shall refer to supporting document [Mail Received at County Office for SNAP Households](#) on how to process returned mail.
4. Households are encouraged to report changes using [Change Report Form hs-2302](#), however, changes may be reported by a phone call, in person, by mail, or by any electronic transmission.
 - a. [Change Report Form hs-2302](#) and a postage-paid envelope is to be provided to all households in the following instances:
 - i. upon approval for initial certification
 - ii. at each recertification
 - iii. any instance when the household uses the [Change Report Form hs-2302](#) to report a change.
 - b. Each [Change Report Form hs-2302](#) with the change received will be date-stamped immediately. Also, the date the information is reported will be documented in the case notes as soon as time permits.
 - c. The change will be considered as reported by the household on the date the report of the change is received by phone, in person, by mail, or by any electronic transmission.

Failure to Report Required Changes

1. If staff discover and verify the household failed to report a required change and as a result, received benefits to which it was not entitled exceeding \$200.00, the worker will file a claim as described in Policy 24.22 SNAP Claims and Issuances.
2. If a discovery is made and verified that affects the current certification, a notice will be sent to the household explaining the change in the case.
3. Individuals will not be disqualified from SNAP for failure to report a change unless the individual is disqualified in accordance with the disqualification procedure specified described in Policy 24.22 SNAP Claims and Issuances.
4. If a household should lose benefits because of failure to report changes timely or at all, the household is not entitled to restoration of lost benefits.

Mass Changes

1. Certain changes are initiated by the Department or the Federal Government which may affect the entire caseload or portions of the caseload. These changes include annual adjustments to the income eligibility standards and various deductions, adjustments to Families First standards and payment levels, Social Security and SSI benefit adjustments, and other changes in the eligibility criteria based on legislative or regulatory actions.
2. Federal SNAP program changes include federal adjustments to eligibility standards, allotments, and deductions. These adjustments shall go into effect for all applicable households at a specific point in time.
3. State SNAP program adjustments to the utility standards shall be effective for all issuance in the month specified by State Office. Although a notice of disposition is not required prior to these adjustments, appropriate notices are generated through the case management system to all affected SNAP households
4. When the Department makes an overall adjustment to Families First standard payments, corresponding adjustments in the households SNAP benefits shall be handled as a mass change.
 - If a household requests a fair hearing timely, benefits shall be continued at the former level only if the issue being appealed is that SNAP eligibility or benefits were improperly computed and not that benefits are reduced because of the mass change.
5. Mass changes normally occur within the case management system for all applicable SNAP cases. There are instances in which cases may be listed on an exception report for review by staff.

Notice of Adverse Action

1. Prior to reducing or terminating a household's SNAP benefits within their certification period, the household shall be provided timely and adequate advance notice before the adverse action is taken.
 - a. An adverse action is:

- i. a reduction in SNAP allotment.
 - ii. the termination of the household's SNAP benefits within the certification period.
 - iii. the reduction in the length of a certification period.
 - iv. removal of a household member from the assistance group.
 - b. To be considered timely, the notice of adverse action must be mailed at least ten (10) days prior to the adverse action's effective date.
 - c. To be considered adequate, the notice of adverse action must be easy to understand the actions, the reason for the action, the right to fair hearing, and a contact number.
2. When sufficient evidence has been provided or obtained to justify a change in benefit level or termination of SNAP, the worker shall authorize the action to reduce or terminate benefits, using the appropriate reason code(s) to ensure adequate notice is given.
 3. When a certification period expires, eligibility ceases. These situations are not terminations; therefore, provisions concerning adverse action do not apply, nor is the household eligible for continuation of benefits, as described in Establishing Certification Period section above.
 4. If the adverse action notice period ends on a weekend or holiday, and a request for a fair hearing and continuation of benefits within a certification period is received the next working day after the weekend or holiday, the county office must consider the request to have been received timely. Staff shall refer to [Policy 24.23 SNAP Appeals and Fair Hearings](#).
 5. Households may have changes in circumstances during the 10-day adverse action period. However, unless a request for a hearing is made and benefit continuance is granted, the benefits will be reduced or terminated according to the notice. Therefore, if a household that receives a notice of adverse action wishes to continue to participate in the program, it may: (1) file an appeal and request continued benefits; or (2) file a new application.
 6. A notice of adverse action is not required in the following instances:
 - a. When implementing mass changes.
 - b. When the household moves from the state.
 - c. When all household members have died.
 - d. When restoration of lost benefits has been completed. Restoration is complete when the household has finished receiving increased allotments to restore lost benefits, and the household was previously notified in writing of when the increased allotments would terminate.
 - e. When monthly allotment varies based on anticipated changes during the certification period.

- f. When a household member is disqualified for Intentional Program Violation (IPV) or the benefits of the remaining household members are reduced or terminated to reflect the disqualification of a household member.
- g. When approving the household's Families First application and it causes a reduction in the SNAP benefits.
- h. When the household is certified on an expedited service basis, contingent on verification. When verification is postponed for expedited services, the household receives a notice of disposition stating that no further benefits will be issued until the postponed verification is provided. If the household fails to provide the verification or provides verifications that change its benefits, the notice of adverse action is not required.
- i. When a household that is repaying a claim is converted from cash repayment for the over-issuance to allotment reduction because they failed to comply with the repayment agreement.
- j. When residents of an approved drug or alcoholic treatment center or group living arrangement lose their eligibility when either the facility loses its certification or has its status as an authorized representative suspended, due to FNS disqualifying it as a retailer. However, residents of group living arrangements applying on their own behalf are still eligible to participate.
- k. When a household voluntarily requests that their case be terminated.

Recertification

1. Every SNAP household will be issued a notice of expiration prior to the last month of the household's certification period.
 - a. It will be considered that the household has reapplied timely if the application is received by the 15th of the last month of certification, regardless of when the interview appointment is scheduled.
 - b. The household must complete the interview on or after the date of application and provide all required verification timely in order to receive uninterrupted benefits (Staff shall refer to [Policy 24.17 SNAP Mandatory Verifications](#) and the supporting document [Verification and Documentation for SNAP](#)).
 - c. The household is responsible for rescheduling any missed interviews.
 - d. The household has the right to request an application and have the department accept the application as long as it is signed and contains a legible name and address.
 - e. Any household containing only SSI recipients or applicants is entitled to apply for SNAP certification at the SSA office if they choose to do so. The joint processing requirements will continue to apply to applications for recertification.
2. Staff shall act timely on all reapplications submitted timely to provide uninterrupted benefits to eligible households.

- a. Complete the application process to approve or deny timely applications prior to the end of the household's current certification period.
 - The application cannot be denied for pending verifications until the customer has had a full ten (10) days to provide.
 - b. Inform the applicant that the household must report all information related to its SNAP eligibility during the interview.
 - Changes reported during the review process are effective the first month of the new certification.
 - c. Provide eligible households with an opportunity to receive SNAP benefits by their normal issuance date the month after receipt of a timely recertification application.
3. Benefits will not be continued to households beyond the end of the certification period unless the household reapplies and is recertified.
 4. SNAP benefits for households that have not provided a recertification application will auto closed. Staff may also take closure actions after the customer misses their first scheduled appointment and if the household has not rescheduled the appointment.
 5. A household will lose its right to uninterrupted benefits when it:
 - a. fails to provide a timely application for certification without good cause or
 - b. fails to complete the first scheduled interview on or after the date of application or
 - c. fails to provide necessary verification within ten (10) days of the date requested or by the fifteenth (15th) of the last month of certification, whichever is later.
 6. If staff fail to provide eligible households the opportunity to receive timely SNAP benefits when the household took all the steps to complete their recertification, staff shall take prompt action to complete the recertification and provide the household the full month's allotment they are eligible for the month after recertification.
 7. Staff shall refer to [Procedure for SNAP Recertification](#) on how to take action timely.

When a SNAP Household Moves

1. It is important that an accurate address for an active SNAP household is on file.
2. Certain actions must be taken as soon as a change of address becomes known.
3. If a customer submits a change in address do not delay changing the mailing address in the customer's case pending verification of the address unless a complete mailing address is not provided.
 - a. Send the household the appropriate notice asking for shelter and utility arrangements and cost verification so that eligibility for appropriate deductions can be evaluated.
 - b. The notice must clearly state what information needs to be provided.

- c. If verification of shelter costs for the new address is provided timely, enter the amount in the budget and determine the next month's benefits with the deduction. Authorize the case, using the appropriate reason code.
 - d. If verification of shelter costs is not provided, remove any existing shelter deduction from the budget and determine the next month's benefits without a shelter deduction.
4. If the customer does not submit a change of address and the county learns of the change of address through returned mail, staff shall refer to below section [Mail Received at County Office for SNAP Households](#) on how to process the change.
5. SNAP households may transfer from county to county within the state and remain eligible for benefits without interruption.
6. When the household reports that they are about to move to a different county unless they have a valid address in the new county, do not transfer the case.
7. Tell the household to contact the department when they have a valid address in the new county; transfer the case when the address is provided.

When a SNAP Household Moves out of State

1. When the department learns that a household has moved out of the state of Tennessee, take prompt action to close the case.
 - If the household reports they moved out of state and it is reported in the month of recertification or when a Mid-Cert form is due, the case can either be closed with the appropriate reason code or the case can be allowed to auto-close.
2. If the household contacts the department about SNAP benefits that remain in their EBT account in Tennessee, explain to the household that they may use the Tennessee Benefit Security Card in any state.

When a member of the SNAP Household Moves Out

1. When the head of the household moves out.
 - a. If the head of the household is moving with some but not all household members, remove the members that are not moving with the head of the household. The individuals that are no longer part of the household may file an application at any time.
 - b. When there are multiple SNAP households in one case and the head of the case moves to a new county, the remaining households are not required to file a new application.
 - i. It will be necessary to go through application registration to establish a new case.
 - ii. When establishing a new case without a new application, be sure the certification period is unchanged.

- iii. Document in the new case's running record the circumstances and the reason that a new application was not required.
 - c. The Eligibility Counselor will update the address in the case management system and document the circumstances in the running record and transfer the case to the new county if the move was to a new county.
 - d. The Eligibility Counselor will send a request for shelter cost changes and allow the household to provide the requested information within ten (10) days.
2. When other household members move out that are not the head of the household.
 - a. If a member of the household moves out, the Eligibility Counselor updating the change will delete the member or members moving out.
 - b. The moving members may file an application at any time.

When a Change Results in Increased Benefits

1. There are several changes in circumstances that entitle a household to increased benefits.
2. Although the household may be entitled to increased benefits, do not issue such increases until the change is verified.
3. If requested verification of a change in expense/deduction is not provided, remove the previous amount, and process the case without the deduction.

Change that May Require a Supplement

1. A supplement does not go back to the day of the reported change or when verification was provided. Use a supplementary allotment to increase benefits when the change cannot be automatically effective the following month due to the system's cutoff.
2. A supplementary allotment will be authorized only if the following criteria are met:
 - a. The change has been verified; and
 - b. It is too late in the month (after computer cut-off) to adjust the benefits received in the following month.
3. If the household is eligible for a supplement, it would be issued for the month after the change is reported and verified timely.
4. Staff shall refer to [Supplements and Restorations for SNAP Households](#) for further procedures.

When a Change Results in Reduction of Benefits

When the household's benefit level decreases or the household becomes ineligible as a result of the change, determine the action to be taken and authorize the change so the appropriate notice can be issued through the case management system.

Changes Affecting SNAP Households Receiving Families First

1. Anytime a household's SNAP benefits are altered as a result of changes in Families First benefits or whenever the SNAP certification period is shortened to reflect changes in the

household's circumstances, the case management system generates the appropriate notice.

2. If the Families First benefits are terminated but the household is still eligible for SNAP benefits, members of the household shall be advised of SNAP work registration requirements, if applicable, as their Families First work requirement no longer applies.
3. Staff shall refer to supporting document [Changes Affecting SNAP Households Receiving Families First Payment](#).

Replacement Benefits

Replacement benefits shall be provided to a household when the household reports that food purchased with SNAP benefits was destroyed in a household misfortune.

- a. Replacement benefits shall only be provided if a household is determined eligible and also reports a loss timely unless a timely reporting waiver is approved by FNS. The report will be considered timely if is made within ten (10) days of the date food is destroyed in a household misfortune.
- b. Staff shall refer to [Food Loss Manual Issuances for SNAP Due to Different Types of Misfortunes or Disasters](#) for procedures with verifying the misfortune and the process for issuing the replacement.

Computer Matches

1. Staff shall not take any adverse action to terminate, deny, suspend, or reduce benefits for a household based on information received from data matches unless the information is verified upon receipt (staff shall refer to [Reporting Requirements and Act on All Changes and Discrepancies with Verified Data Matches](#)).
2. For data matches that are not verified upon receipt, staff shall verify with the household any match information received before:
 - a. Approving an application, or
 - b. Taking action on the information reported in the data match for an active case.
3. The following data matches are not verified upon receipt but may require specific action during the certification period:
 - a. National Directory of New Hires (NDNH) (Staff shall refer to [National Directory of New Hires for SNAP](#) for procedures)
 - b. Prisoner Verification System Match (Staff shall refer to [Incarcerated and Deceased Reports for SNAP](#) for procedures)
 - c. Deceased Individual Match (Staff shall refer to [Incarcerated and Deceased Reports for SNAP](#) for procedures)

Tennessee Education Lottery Corporation (TELC) Match (Staff shall refer to the supporting document [Tennessee Education Lottery Corporation \(TELC\) Match](#) for procedures)

Supporting Documents

[Policy 24.02 SNAP Application Processing](#)

[Multiple Application Processing for SNAP](#)

[Reporting Requirements and Act on All Changes](#)

[Penalty for SNAP due to Failure to Comply](#)

[Potential Duplicate SNAP Benefits by Caseload Owner](#)

[24 Month Certification](#)

[Change Report Form hs-2302](#)

[What Should You Ask?](#)

[Mail Received at County Office for SNAP Households](#)

[Policy 24.22 SNAP Claims and Issuances](#)

[Policy 24.23 SNAP Appeals and Fair Hearings](#)

[Policy 24.17 SNAP Mandatory Verifications](#)

[Verification and Documentation for SNAP](#)

[Procedure for SNAP Recertification](#)

[Supplements and Restorations for SNAP Households](#)

[Changes Affecting SNAP Households Receiving Families First Payment](#)

[Food Loss Manual Issuances for SNAP Due to Different Types of Misfortunes or Disasters](#)

[Discrepancies with Verified Data Matches](#)

[National Directory of New Hires for SNAP](#)

[Incarcerated and Deceased Reports for SNAP](#)

[Request for Verifications and Request for Contact Notices to SNAP Households](#)

[Tennessee Education Lottery Corporation \(TELC\) Match](#)

[Family Assistance Standards Desk Guide](#)

Definitions/Acronyms

Term	Definition
Change Reporting Households	Households certified less than four (4) months or households whose only income is from self-employment.
Good Cause	A situation where the applicant has a valid reason for not providing an application for their SNAP renewal.
Simplified Reporting Households	Households certified between four (4) to six (6) months whose sole income source is not from self-employment OR households that are eligible and certified for a twenty-four (24) months certification.
Substantial lottery or gambling winnings	A cash prize, before taxes or withholdings, that matches the SNAP resource limit for elderly or disabled households listed in the Substantial Lottery and Gambling Winnings Guidelines document. The limit is adjusted annually.

Supersedes

SNAP Policy 24.25 SNAP Continued Responsibilities, eff. date 01/01/2022

Authority

7 C.F.R. § 272.12-.14; 7 C.F.R. § 273.10 - 14; 7 C.F.R. § 274.1; 7 C.F.R. § 274.6;

Tenn. Code Ann. § 4-5-202; Tenn. Code Ann. § 71-5-304 et. seq.;

Tenn. Rules & Regs. Ch. § 1240-1-19.

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
02/14/2023	02/15/2023	Policy & Definition/Acronyms Section	Sections referencing certification timeframes: Change 12 month cert to 6 month cert and remove SR form references. Definitions/Acronyms: added Simplified Reporting Household & Change Reporting Household
11/10/2021	01/01/2022	New Policy	N/A

Approval History

Approved By	Approver Title	Approved Date	Effective Date
Clarence H. Carter	Commissioner	02/14/2023	02/15/2023
Clarence H. Carter	Commissioner	11/10/2021	01/01/2022

Current Approver:

Clarence H. Carter